PAULA R. LEE
Chief Counsel
ANGELA BELGROVE
Deputy Chief Counsel
KARA SLACK
Assistant Regional Counsel
U.S. Department of Health and Human Services
Office of the General Counsel, Region IX
90 7th Street, Suite 4-500
San Francisco, California 94103-6705
Telephone: (415) 437-8494
Facsimile: (415) 437-8188
Email: Kara.Slack@hhs.gov

Attorneys for Agency

U.S. EQUAL EMPLOYMENT OPPORTUNITY COMMISSION
OFFICE OF FEDERAL OPERATIONS

Kevin D. Turnage, Appellant, v. Xavier Becerra, SECRETARY, UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES Agency.	Appeal No. 2024004239 Agency Case No. HHS-IHS-0296-2023 September 10, 2024

AGENCY'S BRIEF IN OPPOSITION TO APPELLANT'S APPEAL

Appellant Kevin Turnage has appealed the U.S. Department of Health and Human Services' ("HHS") Final Agency Decision ("FAD"). The FAD found that the Indian Health Services ("IHS" or "Agency"), an operating division within HHS, did not discriminate or harass

Appellant based on his race (Caucasian), color (white), sex (male), age (Y.O.B. 1973), religion (Christian), or prior protected activity.

In summary, Appellant claimed that the Agency subjected him to discrimination and harassment when it: 1) processed an ultimately approved Family and Medical Leave Act ("FMLA") request, 2) gave Appellant a 3.3 "Achieved Expected Results" performance rating, 3) placed Appellant on administrative leave to investigate an alleged threat he made against an employee, 4) placed Appellant on a temporary detail to fill a critical vacancy, and 5) subjected Appellant to mundane management actions during the temporary detail. The FAD correctly found that these actions were not motivated by Appellant's protected classes, that the Agency proffered legitimate, non-discriminatory reasons for its actions, and that those reasons were not a pretext for discrimination. The FAD also correctly found that Appellant did not meet his burden of establishing a *prima facie* case of harassment as to the above claims.

Appellant also asserted that he was subjected to sexual harassment stemming from a hug his second-line supervisor gave him. The FAD correctly found that the conduct was not sexual in nature, nor was it severe or pervasive.

Appellant's arguments that the FAD was improperly decided are unpersuasive and rest on unsupported speculation.

The Agency respectfully requests that the FAD be affirmed because it is supported by the record evidence and consistent with the law.

I. FACTUAL BACKGROUND

A. Appellant's Background

On March 28, 2022, Appellant (Caucasian, white, male, Y.O.B. 1973, Christian) became a Supervisory Clinical Nurse for the IHS at Phoenix Indian Medical Center ("PIMC"). Report of

Investigation ("ROI") at 63-64. Appellant worked at the Primary Care Medical Clinic ("Clinic") and his responsibilities included supervising the Clinic's nursing and clinical support staff. ROI at 283.

B. Responsible Management Officials ("RMO")

1. RMO-1A (unspecified race, lighter complexion, male, Y.O.B. 1986, non-denominational) was Appellant's first-line supervisor between June 2022 and January 2023. ROI at 259-61; FAD at 18.
2. RMO-1B (Native American and white, color is tan, female, Y.O.B. 1972, Christian) was Appellant's first-line supervisor between January 2023 and March 2023. ROI at 232-33; FAD at 18.
3. RMO-2 (Native American and African American, brown, female, Y.O.B. 1984, Christian) was Appellant's second-line supervisor from May 2022 through March 2023. ROI at 221-22. RMO-2 has worked for the Agency for 15 years and has worked with Appellant since 2017. ROI at 64, 101; FAD at 18.
4. RMO-3 (Native American, white, female, Y.O.B. 1983, religion unknown) is the Chief Operating Officer at PIMC and has held that position since November 2021. ROI at 200-01. In February 2023, she became the acting Chief Executive Officer of PIMC. ROI at 200; FAD at 18.

C. Claim 1: FMLA Request

In December 2022, Appellant had a medical concern that would possibly require extended time off. ROI at 260. RMO-1A proactively provided Appellant with FMLA information and encouraged him to apply for the benefit if he needed it. *Id*. at 261. The Agency's FMLA policy states that employees must provide 30-days advance notice to request

FMLA leave when possible and must provide sufficient information to determine whether the request meets federal requirements. *Id*. at 347-48.

On January 13, 2023, Appellant emailed RMO-1A with some FMLA paperwork for leave that would take place from January 4, 2023 to January 23, 2023, and then intermittent leave that would occur from January 2023 through January 2024. *Id*. at 65, 133, 246. In his email to RMO-1A, Appellant stated "I will work on completing the rest of the packet." *Id*. at 246. On January 26, 2023, RMO-1A emailed Appellant that he would be handing off the FMLA request to RMO-1B, who was now Appellant's first-line supervisor. *Id*. at 261-62. RMO-1A said that he thought Appellant still had outstanding FMLA paperwork and to please provide that to RMO-1B by February 2, 2023. *Id*. at 262. On February 7, 2023, RMO-1B asked Appellant to forward the rest of his FMLA paperwork. *Id*. at 245. That same day, Appellant emailed RMO-1B additional forms. *Id*. On February 14, 2023, RMO-1B told Appellant that additional information was still needed. *Id*. at 234. On March 1, 2023, Appellant inquired into the status of his FMLA request and RMO-1B responded that she was waiting on him to make corrections. *Id*. at 243-44. Appellant responded that the Agency was interfering with his request. *Id*. at 242. RMO-1B therefore processed the application as-is on March 7, 2023. *Id*. at 130-31, 234. RMO-3 approved the FMLA application that same day and sent it to human resources for processing. *Id*. at 130-31, 202. The application was approved in full on April 11, 2023. *Id*. at 130-31, 202, 234.

D. Claim 2: 2022 Performance Review

On February 23, 2023, RMO-1A emailed Appellant his 2022 performance review, which was set out in a Performance Management Appraisal Program ("PMAP"). *Id*. at 264. The review period was from March 28, 2022 through December 31, 2022, which covered Appellant's transition into the position as Supervisory Clinical Nurse. *Id*. at 66, 263. The PMAP is broken

out into critical elements and during a review, each element is given a rating ranging from 1 to 5. *Id*. at 152-65. RMO-1A was the rating official for Appellant's 2022 PMAP because he was Appellant's first-line supervisor during that year. *Id*. at 263. RMO-1A initially gave Appellant an overall score of 3.3, which is "Achieved Expected Results." *Id*. at 264. This score was based on RMO-1A's review that Appellant was new to a leadership role and there were some things he excelled at and others that required improvement, which would be expected for anyone in a new position. *Id*. at 263-64. When RMO-1A emailed Appellant his PMAP on February 23, 2023, RMO-1A explained that he would meet with Appellant the following week to discuss the review. *Id*. at 247. Appellant responded that there was nothing to discuss and that he would not sign the PMAP. *Id*.

On March 2, 2023, Appellant met with RMO-2, who was the reviewing official for the 2022 PMAP. *Id*. at 67, 101-02. They discussed Appellant's overall rating, which Appellant thought was too low, and Appellant also identified that RMO-1A had failed to rate him on one of the elements. *Id*. at 101. RMO-2 explained that only RMO-1A as the rating official could rate the element and that she did not know what rating RMO-1A would apply. *Id*. at 101-03. After the meeting, RMO-2 informed RMO-1A and RMO-3 about the missing rating. *Id*. at 102.

On March 3, 2023, Appellant sent an email to RMO-2 and RMO-3 alleging sexual harassment by RMO-2 based on a hug she had given him in November 2022. *Id*. at 97. RMO-2 remembered that four months earlier she was doing rounds in the Clinic and saw Appellant in his office. *Id*. at 103. Appellant appeared upset so RMO-2 gave him a hug. *Id*. Prior to giving the hug, RMO-2 asked Appellant if it would be okay if she hugged him and he said yes. *Id*. at 103, 225. Further, RMO-2 had hugged other colleagues in similar situations to empathize with them having a bad day. *Id*. at 103. After the hug, RMO-2 tested positive for COVID-19 and learned

that Appellant had COVID-19 at the time of the hug. *Id*. at 104. Appellant joked at a weekly nurse manager meeting that RMO-2 became sick because of the hug. *Id*. at 104, 225-26. In December 2022, RMO-2 gave personalized Christmas cards to everyone she supervised as second-line supervisor, including Appellant. *Id*. at 104. In Appellant's card, RMO-2 played off the joke Appellant had made, writing "I still don't regret that hug!" *Id*. at 104, 150. Thus, receiving Appellant's email in March 2023 was the first time RMO-2 became aware that the hug had made Appellant feel uncomfortable. *Id*. at 103. RMO-2 became upset and tearful about the allegation, and RMO-3 allowed her to take leave the rest of the day. *Id*. at 98. RMO-3 believed Appellant's allegation to be serious and requested an external investigation. *Id*. at 97-98.

On March 6, 2023, Appellant raised further concerns about his PMAP in an email to RMO-3. *Id*. at 97, 122, 150-51. For example, Appellant expressed concerns with RMO-2 being his reviewing official and alleged that RMO-2 had threatened to give him a 2 rating on the missing critical element. *Id*. Appellant pursued a review of the PMAP through the Agency's grievance process. *Id*. at 39-40, 144-45. The Agency processed the grievance and notified Appellant that his PMAP would be revised to include a rating for the critical element that was mistakenly excluded. *Id*. The Agency also notified Appellant that it had alerted the EEO office of his allegations regarding RMO-2. *Id*. at 144. It further explained that due to those allegations, RMO-2 would no longer be the reviewing official for his 2022 PMAP and replaced her with RMO-3. *Id*.

Appellant's PMAP was rescored to include the missing rating. Appellant received a 3 rating for the missing element, increasing his overall score to 3.5, which still equated to Achieved Expected Results. *Id*. at 152-53.

/ / /

E. Claim 3: Administrative Leave

In his supervisory position, Appellant struggled with one of the nurses who he supervised, Nurse Greve, regarding her acceptance of work assignments. Nurse Greve had filed complaints against Appellant for discrimination and hostile work environment. ROI at 222, 259. Nurse Greve had also directly addressed Appellant regarding her need for a reasonable accommodation in an email sent to Appellant in October 2022. *Id*. at 260. In the email Nurse Greve stated, "I am working with you as my supervisor but I do not want to be discriminated, harassed, or retaliated." *Id*. In December 2022, Appellant emailed RMO-1A and RMO-2 that Nurse Greve was now creating a hostile working environment for him and other staff members, and that she needed to be removed from his department. *Id*. at 259, 268.

On March 21, 2023, Appellant's issue with Nurse Greve came to a head when she refused to accept a work assignment. *Id*. at 204. Appellant reported that this left the Clinic short-staffed. *Id*. at 195, 235. RMO-1B went to Appellant's office to address his concerns and could see that Appellant was angry. *Id*. at 235. Also present was Witness 1, who had been waiting in Appellant's office for a scheduled meeting. *Id*. at 236, 277; FAD at 18. Appellant was angry at Nurse Greve and according to RMO-1B, said "get her out of my clinic before I beat the fucking shit out of her." ROI at 235-36. RMO-1B reported that threat to management and said Witness 1 was present for the interaction. *Id*. at 204, 236, 255.

That same day, RMO-3 received an email from Appellant regarding Nurse Greve. *Id*. at 119. He expressed frustration with fulfilling Nurse Greve's need for a reasonable accommodation, stating "every time she is instructed to do something she cannot because of her reasonable accommodation. Please provide a Registered Nurse that can see and care for patients. I need a clinical care nurse not an administrative nurse." *Id*.

RMO-3 took the alleged threat by Appellant seriously. She had personally seen Appellant lose his temper in stressful situations and she was aware of the history between Appellant and Nurse Greve. *Id*. at 204-05. She therefore decided to place Appellant on paid administrative leave for 10 days so that the Agency could review the incident. *Id*. at 98, 167, 205. When Appellant was notified of this, he was escorted out of the Clinic and was instructed that during the leave he would be restricted from conducting official business or entering an Agency facility without permission. *Id*. at 98, 167.

During the Agency's investigation into the matter, Witness 1 was interviewed. *Id*. at 268. The written statement provided by Witness 1 was based on her account of the facts. *Id*. Witness 1 confirmed that she was in Appellant's office during the conversation between Appellant and RMO-1B but that she could not recall if Appellant threatened Nurse Greve. *Id*. Thus, no disciplinary action resulted from the investigation. *Id*.

F. Claims 4-7: Temporary Detail and Work Conditions

At the end of Appellant's administrative leave, RMO-3 made the decision to place Appellant on a temporary detail as a Policy Officer at PIMC, effective April 3, 2023. *Id*. at 76. There was a critical vacancy for the Policy Officer position due to the hospital being in an open window for accreditation. *Id*. at 69, 82, 205. Appellant had the unique knowledge and skill set to review and update PIMC policies to make sure that they were compliant with accreditation standards. *Id*. at 76, 205-06. In addition, an unworkable environment had been created at the Clinic due to the accusations between Appellant, Nurse Greve, and RMO-2. *Id*. at 205. The detail would allow the hospital to address the alleged concerns of misconduct and harassment in the workplace. *Id*. at 79, 98.

The temporary detail was for 120 days and did not impact Appellant's position of record or compensation. *Id*. at 76. The detailed position was located in the Aztec building, which was across from the Clinic. *Id*. at 70-71. Appellant had previously worked in the Aztec building for a number of years. *Id*. at 206-07. When Appellant started in the Policy Officer position, he was not provided a restroom key or office key. *Id*. at 70. He notified RMO-3, and he was given keys within a couple of days. *Id*. at 70, 211. In the meantime, Appellant could access the restroom using keys hanging in a staff area, which were available for everybody to use. *Id*. at 206.

On May 24, 2023, Appellant sent a letter to RMO-3 demanding that he be returned to his position and alleging that the detail was discriminatory. *Id*. at 79-81. However, the next week, Appellant communicated to his temporary supervisor that he would be agreeable to remaining in the position as Policy Officer. *Id*. at 216-17.

On June 2, 2023, RMO-3 emailed Appellant that his detail would continue. *Id*. at 79. She noted that his performance as acting Policy Officer was significantly supporting accreditation compliance and enhancing quality and safe operations at PIMC. *Id*. RMO-3 further explained that management was working to address the alleged concerns of misconduct and harassment in the workplace, and that Appellant would be notified when management had fully addressed all the allegations. *Id*.

II. PROCEDURAL HISTORY

In his April 13, 2023 formal EEO complaint, Appellant alleged that the Agency had subjected him to discrimination and harassment based on his race (Caucasian), color (white), sex (male), age (Y.O.B. 1973), religion (Christian), and prior protected activity when:

1. Beginning in January 2023, management failed to timely process his FMLA paperwork;
2. On or about March 2, 2023, management gave Complainant a low PMAP score;

3. On or about March 21, 2013, management placed Complainant on administrative leave, escorted Complainant out of the facility utilizing security, and removed Complainant's system access;

4. On or about April 2023, management placed Complainant on a temporary 120-day detail in another unit;

5. Beginning on or about April 2023, management denied Complainant access to the Men's restroom;

6. Beginning on or about April 2023, management did not provide Complainant office keys; and

7. Beginning on or about April 2023, management reassigned Complainant to an undesirable location. FAD at 1-2.

The EEO investigation occurred from June 27, 2023 to August 21, 2023. ROI at 3. The Agency submitted the completed ROI on August 31, 2023. *Id*. at 3. On July 11, 2024, the Agency issued a FAD, finding no discrimination. FAD at 1-21. Appellant timely filed the instant appeal on July 12, 2024.

III. STANDARD OF REVIEW

Final agency decisions shall be reviewed de novo, and the Commission's decision will be based on a preponderance of the evidence. *See* EEOC Management Directive 110 ("MD-110"), Ch. 9 § VI.A. The *de novo* standard requires that the Commission examine the record without regard to the factual and legal determinations of the previous decision maker. MD-110, Ch. 9, § VI.A.2.

On appeal, the Commission will review the documents, statements, and testimony of record, including any timely and relevant submissions of the parties, and the Commission will issue its decision based on its own assessment of the record and interpretation of the law. *Id*.

/ / /

/ / /

/ / /

IV. ARGUMENT

A. The FAD Correctly Concluded that the Alleged Actions at Issue in Claims 1-4 Did Not Constitute Disparate Treatment Based on Race, Color, Sex, Religion, Age, or Reprisal.

Appellant has raised allegations of unlawful discrimination based on race (Caucasian), color (white), sex (male), age (Y.O.B. 1973), religion (Christian), and reprisal. In order to prevail on a theory of disparate treatment without direct evidence of discrimination under each of these bases, a complainant must satisfy the three-part evidentiary framework described in *McDonnell Douglas Corp. v. Green*, 411 U.S. 792 (1973).

At step one, Appellant must establish by the preponderance of the evidence a *prima facie* case of discrimination. *See id*. at 802. To establish a *prima facie* case of discrimination based on race, color, sex, religion, or age, Appellant must show that 1) he is a member of a protected class, 2) he was the recipient of an adverse employment action, and 3) he was treated different from similarly situated employees outside of his protected class. *See Valenzuela v. U.S. Post. Serv.*, EEOC Appeal No. 0120102771, 2010 WL 3939953, *2 (Sept. 27, 2010). To establish a *prima facie* case of discrimination based on reprisal, Appellant must show that: 1) he engaged in a protected activity, 2) the Agency was aware of the protected activity, 3) subsequently, he was subjected to adverse treatment by the Agency, and 4) a nexus exists between the protected activity and the adverse treatment. *See Jaleesa P. v. Dep't of the Army*, EEOC Appeal No. 2020003940, 2021 WL 5225282, *8 (Oct. 26, 2021).

At step two, if Appellant establishes a *prima facie* case of discrimination, the burden shifts to the Agency to articulate a legitimate, nondiscriminatory reason for its actions. *See McDonnell Douglas Corp.*, 411 U.S. at 802. At step three, if the Agency satisfies its burden, Appellant must demonstrate that the Agency's proffered explanation was not the true reason for

the employment decision, but was mere pretext for discrimination. *Id.* at 804-05. Appellant may show pretext directly by persuading the trier of fact that a discriminatory reason more likely motivated the Agency or indirectly by showing that the Agency's explanation is "unworthy of credence." *Tex. Dep't of Cmty. Affairs v. Burdine*, 450 U.S. 248, 256 (1981). To show an explanation is unworthy of credence, Appellant must expose "weaknesses, implausibility, inconsistencies, or contradictions in the [Agency's] proffered legitimate reasons." *Arica C. v. Dep't of Defense*, EEOC Appeal No. 0120171034, 2018 WL 6599714, *8 (Nov. 30, 2018). Mere assertions or speculation, without more, are insufficient to establish pretext. *See Grier v. U.S. Postal Serv.*, EEOC Appeal No. 01986577, 2000 WL 33542295, *2 (Mar. 7, 2000).

This three-step order of analysis need not be followed in all cases. Where the Agency has articulated a legitimate, non-discriminatory reason for its action, the inquiry can proceed to the third step of analysis, "the ultimate issue of whether a complainant has shown by a preponderance of the evidence that the agency's actions were motivated by discrimination." *Vance v. Dep't of Veterans Affairs*, EEOC Appeal No. 0120103240, 2013 WL 653748, *2 (Feb. 15, 2013).

Finally, even with this shifting back and forth of the intermediate evidentiary burden, it is Appellant who bears the ultimate burden of persuasion to prove by a preponderance of the evidence that the Agency engaged in intentional discrimination. *See Reeves v. Sanderson Plumbing Prod.*, 530 U.S. 133, 143 (2000).

1. **<u>Claim 1: FMLA Request</u>**

The FAD correctly determined that Appellant failed to establish religion, race, color, age, sex, and/or reprisal discrimination based on the processing of his FMLA request. FAD at 8-10.

/ / /

i. Appellant did not establish a *prima facie* case of religion, race, color, age, or sex discrimination.

Appellant has not met his burden of establishing a *prima face* case of discrimination based on his religion, race, color, age, or sex, because he did not show that similarly situated employees outside of his class were treated more favorably.

Appellant stated that the FMLA event was *not* related to his religion. ROI at 66. Rather, Appellant asserted that his FMLA request was delayed because he is not Native American, because he is male while most of the staff is female, and because of his age since most of the staff is in their "20's or early 30's". *Id*. at 65-66. However, when asked which similarly situated employees were treated more favorable than him, he responded "Nobody I can think of." *Id*. at 66. Thus, while Appellant may have identified differences between him and other staff members, he failed to show that similarly situated employees outside of his protected classes were treated more favorably than him regarding FMLA requests. *See Valenzuela v. U.S. Postal Serv.*, EEOC Appeal No. 0120102771, 2010 WL 3939953, *3 (Sept. 27, 2010) (finding that complainant failed to establish a *prima facie* case of discrimination where she did not identify any similarly situated employees outside of her protected classes who were treated differently). Furthermore, Appellant presents no argument or evidence that give rise to an inference that the Agency was motivated by discriminatory animus toward Appellant's religion, race, color, age, and/or sex when it processed his FMLA request.

Accordingly, Appellant has failed to meet his burden of establishing a *prima facie* case of religion, race, color, age, and sex discrimination as to Claim 1 and the FAD should be affirmed.

/ / /

/ / /

/ / /

ii. Appellant did not establish a *prima facie* case for reprisal discrimination.

Appellant has not met his burden of establishing a *prima facie* case of reprisal discrimination because he has not made the requisite showing that the person processing his FMLA request knew of his protected activities.

As to Appellant's protected activities, it appears that those were based on Appellant: 1) inquiring about hostile work environment claims made by four nurses against another nurse[1], 2) making his own hostile work environment claim against Nurse Greve, and 3) making a sexual harassment claim against RMO-2.

Appellant argues that RMO-1B delayed his application and asked for improper modifications to forms. ROI at 65; Appeal filed on July 12, 2024 ("Appeal") at 3-4. However, there is no evidence that RMO-1B was aware of any protected activity by Appellant until March 2023. ROI at 233. Specifically, in January 2023, RMO-1B became Appellant's first-line supervisor. *Id*. at 232-33. For that reason, RMO-1B took over the processing of Appellant's FMLA application on or about January 26, 2023. *Id*. at 246, 261. After corresponding with Appellant throughout February about receiving a complete application, RMO-1B approved the

---

[1]At times, Appellant was unclear about who the four nurses complained about. Specifically, in Appellant's affidavits he indicated that hostile work environment claims were made by four of his nurses, however, he was vague as to who those claims were made against. ROI at 64, 66. Other parts of the record indicate that those claims were against another nurse. *Id*. at 268. This lack of clarity appears in the FAD, which characterized the hostile work environment claims by the four nurses as being made against Appellant. FAD 3, 10. To the extent the FAD misstated Appellant's protected activities related to Claim 1, that does not affect the ultimate conclusion by the FAD that Appellant did not establish a *prima facie* case of reprisal discrimination. *See Golden v. Dep't of Interior*, EEOC Appeal No. 05A10809, 2003 WL 21780305, *1 (July 24, 2003) (finding that misstatement in FAD was not material where complainant ultimately failed to establish that the agency was motivated by a discriminatory animus); *Torian v. Dep't of Navy*, EEOC Appeal No. 01910118, 1991 WL 1185402, *6 (Feb. 6, 1991) (explaining that while the FAD incorrectly stated factors considered by the selecting officials, on *de novo* review of the evidence, there was insufficient evidence to establish discrimination).

form on March 7, 2023 to be moved forward to human resources for further processing. *Id*. at 130-32, 234. It was not until weeks later that RMO-1B first learned of any complaints made by Appellant. *Id*. at 233; *see Vena H. v. Dep't of Veterans Affairs*, EEOC Appeal No. 2021004359, 2023 WL 6194096, *3 (Aug. 28, 2023) (finding that complainant could not establish a *prima facie* case of reprisal where the record was devoid of evidence that the deciding officials were aware of the prior protected activity); *Weems v. Dep't of Treasury,* EEOC Appeal No. 0120070998, 2007 WL 4372453, *3 (Dec. 4, 2007) (finding that any delay in processing complainant's FMLA leave requests was due to further requests for information from the agency and was not due to discrimination or retaliation).

Accordingly, Appellant has failed to meet his burden of establishing a *prima facie* case of reprisal discrimination as to Claim 1 and the FAD should be affirmed.

iii. Appellant failed to produce any evidence that the Agency's legitimate, non-discriminatory reasons for the steps it took in processing his FMLA request were pretext for discrimination.

Even assuming Appellant could establish a *prima facie* case for discrimination as to Claim 1, the record shows that the Agency had legitimate, non-discriminatory reasons for how it processed Appellant's FMLA request.

Specifically, in December 2022, RMO-1A encouraged Appellant to apply for FMLA leave and provided him with information and documents to help him apply. ROI at 260. In January 2023, Appellant began the process of applying for FMLA leave that was to begin that same month. *Id*. at 130, 246. He initially did not submit all the necessary documents. *Id*. at 245-46. In February 2023, there was a back-and-forth between Appellant and RMO-1B to obtain complete paperwork. *Id*. at 234-35, 244-46. On March 1, 2023, Appellant emailed RMO-1B asserting that his application was being delayed. *Id*. at 243-44. RMO-1B responded that she was

waiting on his corrections to the forms. *Id*. at 243. Appellant's response continued to assert RMO-1B was delaying his application. *Id*. at 242. Because Appellant was not going to make any changes to the forms, RMO-1B moved the FMLA request forward to human resources. *Id*. at 130-32, 202, 234. The application was approved in full in April 2023. *Id*. To the extent there were delays in processing Appellant's FMLA request, those were due to RMO-1B's efforts to facilitate Appellant submitting a complete application and lack of clarity around whether his application was complete. *See Mauricio v. Dep't of Veterans Affairs,* EEOC Appeal No. 0120162551, 2018 WL 4358919, *7 (Aug. 14, 2018) (explaining that a delay in granting complainant's FMLA request was reasonable in light of the agency's need to obtain additional supporting documentation and its efforts to address its growing backlog of FMLA requests).

Appellant has not shown that the Agency's proffered legitimate, non-discriminatory reasons were pretext for discrimination. In his hearing request, Appellant argues that the Agency did not process his FMLA paperwork within the required timeframe, but he does not point to any evidence of a discriminatory motive. Appeal at 2, 4. Appellant also claims that RMO-1B asked him to make improper modifications to his paperwork, but he identifies no specific evidence to support that assertion. *Id*. While Appellant states that he submitted a complete FMLA application on January 26, 2023, the record does not reflect that. ROI at 243-46. Ultimately, there are no facts or evidence that show the Agency's actions regarding Appellant's FMLA request were motivated by his race, color, sex, age, religion, or protected activity. *See Kate v. Dep't of Veterans Affairs,* EEOC Appeal No. 2023001807, 2024 WL 3314380, *11 (June 13, 2024) (finding that the agency rightfully reached out to complainant to acquire information it did not already have, which was needed for the processing of her FMLA request)

Therefore, the FAD's finding of no discrimination as to Claim 1 should be affirmed.

2. **Claim 2: 2022 Performance Review**

The FAD correctly concluded that assuming arguendo that Appellant had established a *prima facie* case of race, color, age, sex, religion, and/or reprisal discrimination regarding his 2022 PMAP score, that Appellant failed to show pretext. FAD at 10-12.

Appellant asserted that he was discriminated against when the Agency failed to include a score for one of the critical elements of his PMAP and when the overall score was lower than Appellant expected. ROI at 67. Appellant stated that this claim was based on him rebuffing RMO-2's "sexual advances" in November 2022 and not related to any other protected class. *Id*. at 68.

The Agency provided legitimate, non-discriminatory reasons for its actions regarding Appellant's 2022 PMAP. First, the failure to include a score for one element was an unintentional error by the rating official, RMO-1A. *Id*. at 144, 149, 204, 225. After notification of the mistake, RMO-1A scored the element, which increased Appellant's overall score from 3.3 to 3.5. *Id*. at 152, 264. Second, the overall score that Appellant received reflected his supervisor's objective assessment of Appellant's performance. Specifically, RMO-1A explained that Appellant was new to his role of Supervisory Clinical Nurse and there were some elements in which he excelled and others that required improvement. *Id*. at 263. For an example, RMO-1A described that Appellant struggled with turning work in on time, specifically in regard to recruiting packets. *Id*. at 161, 263-64. While Appellant may not have agreed with his overall rating and thought he should have received "a 4.0 or better", his belief alone is not evidence of unlawful discrimination. *Id*. at 67; *see Les B. v. Dep't of Veterans Affairs*, EEOC Appeal No. 2021004751, 2022 WL 17664949, *5 (Nov. 21, 2022) ("While Complainant may disagree with

the Agency's reasons for his performance rating, the parties' differences of opinions do not give rise to an inference of discrimination.").

Appellant has not offered any evidence demonstrating that these explanations are false, insincere, or unworthy of credence. Appellant asserts that the Agency's actions were motivated by Appellant rebuffing RMO-2's hug, but there is no evidence of this. ROI at 68. In fact, the Agency did not become aware of Appellant's accusations against RMO-2 until *after* Appellant was provided his performance review. Specifically, the 2022 PMAP was provided to Appellant on February 23, 2023 and Appellant first raised his allegations against RMO-2 on March 3, 2023. *Id*. at 97, 103, 122, 150-51, 264-65. Upon learning of the allegations, the Agency replaced RMO-2 as the reviewing official with RMO-3, given the allegations against RMO-2. *Id*. at 144-45. The Agency then rescored the missing element. *Id*. at 152, 264. Appellant simply alleges that these actions by the Agency suggest a retaliatory motive, but this is insufficient to meet his burden. Appeal at 4.

For these reasons, the FAD should be affirmed as to Claim 2.

3. <u>Claim 3: Administrative Leave</u>

The FAD correctly concluded that Appellant did not establish that the Agency's legitimate, non-discriminatory reasons for placing him on administrative leave were pretext for reprisal discrimination.[2] FAD at 13-14.

The Agency has provided legitimate, non-discriminatory reasons for placing Appellant on administrative leave – Appellant allegedly made a threat of violence against his direct report. Specifically, on March 21, 2023, RMO-3 was notified by RMO-1B that Appellant and his direct

[2] The FAD correctly interpreted Appellant's claim to be based on reprisal where Appellant stated he did not believe the claim was related to any other protected class. FAD at 13; ROI at 69.

report, Nurse Greve, had a disagreement about a work assignment. ROI at 204. RMO-1B informed RMO-3 that she was discussing this with Appellant in his office and Appellant made a statement that he would beat up Nurse Greve if RMO-1B did not get Nurse Greve out of the Clinic. *Id*. at 204, 235-36. RMO-1B also said there was a witness who was in Appellant's office at the time. *Id*. at 204. RMO-3 took the threat seriously. Not only was the statement itself serious, but she had personally seen Appellant lose his temper in stressful situations and was aware of the history between Appellant and Nurse Greve. *Id*. at 204-05. She therefore made the reasonable decision to place Appellant on a 10-day administrative leave so that she could review the incident. *Id*. at 167, 205. Thus, the administrative leave was a direct result of Appellant's alleged threat of violence. *See Ela O. v. Dep't of Veterans Affairs*, EEOC Appeal No. 2023005055, 2024 WL 517413, *4 (Jan. 29, 2024) (finding that the agency articulated legitimate, nondiscriminatory reasons for initiating an investigation and placing complainant on a temporary detail during the investigation).

Appellant has not met his burden to show that the Agency's legitimate, non-discriminatory reason for placing him on administrative leave was pretext for discrimination. Appellant only disputes the credibility of the investigation into the threat, including his allegation that the Agency threatened Witness 1 and tampered with her witness statement. Appeal at 2. To support these arguments, Appellant points to evidence that was submitted for the first time with this appeal. *Id*. at 5-18. That new evidence includes various documents, emails, and texts, many of which are dated from March 2023. *Id*. at 5-18. Appellant would have been in possession of those during the EEO investigation, which was conducted June through August 2023, but he did not product it. ROI at 3, 72. Nor has he shown that the evidence was not reasonably available to him at that time. *See Sunday S. v. Dep't of Homeland Sec.*, EEOC Appeal No. 2019005172,

2020 WL 5657008, *3 (Sept. 3, 2020) (citing EEO MD-110 at Chap. 9, § VI.A.3) ("As a general rule, no new evidence will be considered on appeal unless there is an affirmative showing that the evidence was not reasonably available prior to or during the investigation."). As such, the new evidence should not be considered.

Even if the Tribunal considers the new evidence, it does not establish improper actions or motive by the Agency. First, the texts between Appellant and Witness 1 speculate about why he was placed on administrative leave, but do not provide direct or circumstantial evidence of pretext. Appeal at 11-18. Further, the emails between the Agency and Witness 1 reflect the Agency's attempts to ensure that the statement by Witness 1 accurately reflected what she witnessed in Appellant's office. *Id*. at 5-10. Ultimately, Appellant's improper submissions do nothing more than support the Agency's explanation that it used the leave period to investigate the incident.

Further, while Appellant makes bare assertions about the Agency's motives for placing him on administrative leave, there is no evidence to indicate the Agency undertook the investigation in bad faith or that the administrative leave was done in reprisal for any complaint of harassment made by Appellant. *See Erby v. U.S. Postal Serv.*, EEOC Appeal No. 0120064377, 2008 WL 515145, *4 (Feb. 12, 2008) (finding that complainant's bare assertions of pretext were insufficient to overcome the agency's legitimate, nondiscriminatory reasons). Additionally, the outcome of the investigation, which resulted in no disciplinary action against Appellant, does not undercut the Agency's legitimate reasons for placing Appellant on administrative leave in the first place. ROI at 205; *see Marc L. v. Dep't of Veterans Affairs*, EEOC Appeal No. 2022003266, 2023 WL 5275309, *1 (July 17, 2023) ("Even if the results of the fact finding investigations found the claims against Complainant to be unfounded, there is

nothing to indicate that the allegations were made in reprisal for his prior protected EEO activity or that the Agency did not act reasonably by investigating them."). Appellant allegedly threatened physical harm to a subordinate; the Agency was obliged to place Appellant on administrative leave so that it could investigate.

For these reasons, the FAD should be affirmed as to Claim 3.

4. <u>Claim 4: Temporary Detail</u>

The FAD correctly concluded that Appellant did not establish that the Agency's legitimate, non-discriminatory reasons for placing him on a temporary detail were pretext for reprisal discrimination.[3] FAD at13-14.

The Agency provided legitimate, non-discriminatory reasons for placing Appellant on a temporary detail. First, there was a critical vacancy for the position of Policy Officer because PIMC was going through an accreditation process that required reviewing and updating policies. ROI at 205-06. Specifically, RMO-3 needed someone to fill the Policy Officer position who had the skill set for writing, researching, and reviewing policies to ensure that the policies were fully updated and in compliance with accreditation standards. ROI at 76, 205-06. RMO-3 identified Appellant as someone who was uniquely qualified to fill that position because he possessed the knowledge and skills in the area of policy review. *Id.*; *see Morton P. v. Dep't of Agric.*, EEOC Appeal No. 2019002486, 2019 WL 7603083, *6 (Dec. 26, 2019) (finding that a staffing need was a legitimate, nondiscriminatory reason for placing complainant on a temporary detail). In addition to that staffing need, the detail was also put into place pending the ongoing investigation into the allegations of discrimination and harassment that had been made by Nurse Greve against

[3] The FAD correctly interpreted Appellant's claim to be based on reprisal where Appellant stated that he did not believe the claim was related to any other protected class. FAD at 13; ROI at 70.

Appellant and Appellant's complaint of harassment against Nurse Greve. ROI at 79; *see Finizie v. Dep't of Veterans Affairs,* EEOC Appeal No. 01961482, 1998 WL 56568, *1-2 (Feb. 5, 1998) (finding that placing complainant on a temporary detail pending a workplace investigation was a legitimate, non-discriminatory reason); *see also Lorita S. v. Dep't of Veterans Affairs*, EEOC Appeal No. 2022000703, 2023 WL 2237786, *4 (Jan. 31, 2023) (explaining that being placed on an involuntary temporary detail pending an investigation is not a disciplinary action). Furthermore, the temporary detail would relieve what RMO-3 had deemed an unworkable environment in the Clinic. ROI at 205; *see Taylor v. Dep't of Trans.*, EEOC Appeal No. 0120064578, 2009 WL 742276, *2, *5 (Mar. 13, 2009) (finding that placing complainant on a temporary detail based on concerns about the general office environment and to allow for a "cooling-off" period were legitimate, nondiscriminatory reasons).

Appellant's appeal only makes bare assertions about Claim 4, and he has offered no facts or evidence to rebut that Agency's legitimate, non-discriminatory reasons. Appeal at 1-4; *see Erby v. U.S. Postal Serv.*, EEOC Appeal No. 0120064377, 2008 WL 515145, *4 (Feb. 12, 2008) (finding that Appellant's bare assertions of pretext were insufficient to overcome the agency's legitimate, nondiscriminatory reasons). Furthermore, Appellant does not refute that he was qualified for the Policy Officer position, demonstrated outstanding performance in the detail, and expressed interest in remaining in the Policy Officer position permanently. ROI at 206; *see George v. Small Bus. Assoc.*, EEOC Appeal No. 0120103328, 2012 WL 2178634, *12 (June 8, 2012) (finding that complainant's argument that a temporary detail was a form of punishment for his protected activity was insufficient to refute the agency's position that complainant's analytical and business background were needed to address concerns about agency programs). Ultimately, agencies have broad discretion to carry out personnel decisions and exercise business

judgment. *See Kathie N. v. U.S. Postal Serv.*, EEOC DOC 2019000375, 2020 WL 949695, *8 (Feb. 21, 2020). Here, the Agency articulated legitimate business reasons for placing Appellant on a temporary detail and Appellant has not met his burden to establish that the Agency's explanations are "unworthy of credence." *See Tex. Dep't of Cmty. Affairs v. Burdine*, 450 U.S. 248, 256 (1981).

For these reasons, the FAD should be affirmed as to Claim 4.

B. The FAD Correctly Concluded that Appellant Did Not Establish a Harassment Claim.

Appellant has also raised allegations of harassment. In order to establish a *prima facie* case of harassment, Appellant must show by the preponderance of the evidence that: 1) he belongs to a statutorily protected class, 2) he was subjected to unwelcome conduct, 3) the conduct complained of was based on his protected status, 4) the conduct had the purpose or effect of unreasonably interfering with his work performance and/or creating an intimidating, hostile, or offensive work environment, and 5) there is a basis for imputing liability to the employer. *See Murray v. Dep't of Agric.*, EEOC Appeal No. 01986319, 2000 WL 732045, *1 (May 22, 2000).

A *prima facie* case of harassment is precluded where an appellant fails to establish that the challenged actions were motivated by discriminatory animus. *See Oakley v. U.S. Postal Serv.*, EEOC Appeal No. 01982923, 2000 WL 1459992, *3 (Sept. 21, 2000).

"Conduct that is not severe or pervasive enough to create an objectively hostile or abusive work environment — an environment that a reasonable person would find hostile or abusive — is beyond Title VII's purview." *Harris v. Forklift Sys., Inc.*, 510 U.S. 17, 21 (1993). Whether the conduct is sufficiently severe or pervasive is determined by considering all circumstances, including the frequency and severity of the conduct, "whether it is physically

threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee's work performance." *Id.* at 23. A single incident or a group of isolated incidents is not enough to establish discriminatory harassment. *See Parrot v. U.S. Postal Serv.*, EEOC Appeal No. 01A32318, 2004 WL 368035, *1 (Feb. 19, 2004); *see also Stock v. Dep't of the Army*, EEOC Appeal No. 01A61981, 2006 WL 2526781, *2 (Aug. 24, 2006) ("[T]he Commission has repeatedly found that claims of a few isolated incidents of alleged harassment usually are not sufficient to state a harassment claim.").

1. <u>Claims 1-4</u>

The FAD correctly determined that Appellant failed to establish discriminatory animus motivated any of the Agency's actions as alleged in Claims 1-4. FAD at 15. Therefore, a *prima facie* case of harassment is precluded to the extent Appellant has alleged that the Agency's actions described in Claims 1-4 constitute harassment. *See Oliver M. v. Dep't of Def.*, EEOC Appeal No. 2019003112, 2020 WL 5994577, *11 (Sept. 15, 2020) ("A finding of a hostile work environment is precluded by our determination that Complainant failed to establish that any of these actions were motivated by discriminatory animus."); *Oakley*, EEOC Appeal No. 01982923, 2000 WL 1459992 at *3 ("… a *prima facie* case of harassment is precluded based on our finding that the agency's action was not motivated by discriminatory animus towards complainant's age, sex or disability.").

2. <u>Claims 5-7: Work Conditions</u>

The FAD correctly concluded that Appellant did not establish a *prima facie* case of retaliatory harassment as to Claims 5-7.[4] FAD at 15-17.

---

[4] The FAD correctly interpreted Appellant's Claims 5-7 to be based solely on reprisal. FAD at 16; ROI at 72.

In Claims 5-7, Appellant alleged that the Agency subjected him to retaliatory harassment when it denied him access to the men's restroom, did not provide him with office keys, and reassigned him to the Aztec building, which he believed was an undesirable location. *Id*. at 1-2; ROI at 3.

First, Appellant has not provided any facts or evidence that these alleged acts were motivated by a protected activity. Appellant states that when he started the temporary detail, he was not given restroom or office keys, but he admits that the keys were provided to him within days after he notified management. ROI at 70. During the period without a restroom key, Appellant was not denied access to a restroom. A restroom key is available in the employee break room for all staff to use and Appellant, having worked in the Aztec building for years, understood this. *Id*. at 206, 266. In addition, Appellant's dissatisfaction with being assigned to the Aztec building appears to be based on his desire to visit with those who he worked with at the Clinic. *Id*. at 71. But Appellant was free to visit the Clinic once his administrative leave was over. *Id*. at 207. There is no evidence to suggest a short delay in receiving keys or being assigned to the Aztec building were based on retaliatory animus. *See Complainant v. Dep't of the Army*, EEOC Appeal No. 0120132036, 2015 WL 5000690, *4 (Aug. 14, 2015) (finding that the "alleged incidents were more likely the result of routine supervision, managerial discipline, personality conflicts, and general workplace disputes and tribulations.").

Second, Appellant has not established that these actions were sufficiently severe or pervasive to create a hostile work environment. Receiving work equipment or being assigned to a different building are common workplace occurrences and are not abusive or offensive. *See Lavern B. v. Dep't of Homeland Sec.*, EEOC Appeal No. 2020005283, 2022 WL 2701506, *6

(June 29, 2022) (finding that routine work assignments and instructions do not rise to the level of harassment because they are common workplace occurrences).

For the foregoing reasons, the FAD should be affirmed as to Claims 5-7.

3. <u>Sexual Harassment Claim</u>

The FAD correctly concluded that Appellant did not establish a *prima facie* claim of sexual harassment. FAD at 12-13.

Appellant's sexual harassment claim against RMO-2 is based on his allegation that RMO-2 hugged him and subsequently made comments about the hug as well as threatened to give Appellant a low PMAP rating. ROI at 3.

First, there is no indication that the alleged conduct by RMO-2 was based on Appellant's sex or that the conduct was sexual in nature. RMO-2 admitted that in November 2022, she hugged Appellant in his office after she noticed that he was upset. *Id*. at 103, 225. RMO-2 explained that the non-sexual hug was meant to empathize with Appellant having a bad day and that she had also hugged female employees in the past to show empathy. *Id*. at 103-04, 225. The next month, RMO-2 referenced the hug in a Christmas card that she gave Appellant. *Id*. at 103-04. RMO-2 explained that she had given personalized cards to everyone she supervised as a second-line supervisor, and she mentioned the hug in Appellant's card because he had openly joked about it to staff. *Id*. at 103-04, 191, 225-26; *see Wilson v. Dep't of the Air Force*, EEOC Appeal No. 01A14669, 2003 WL 660615, *2 (Feb. 21, 2003) (finding that comments of a sexual nature toward complainant, including telling other employees to give complainant a hug, did not amount to unwelcome conduct of a sexual nature, particularly where complainant engaged in teasing and bantering). It was not until months later that RMO-2 learned that Appellant was uncomfortable with the hug. ROI at 103. This was *after* Appellant's PMAP score was reviewed

by RMO-2 and *after* RMO-2 met with Appellant to discuss the PMAP. *Id*. Based on these facts, Appellant has not met his burden to establish that the alleged conduct by RMO-2 was based on Appellant's sex or that he was subjected to unwelcome conduct of a sexual nature. *See Damaris M. v. U.S. Post. Serv.*, EEOC Appeal No. 0120181186, 2019 WL 4011633, *3 (Aug. 13, 2019) (explaining that complainant must show that he was "subjected to unwelcome sexual advances, requests for sexual favors, or other verbal or physical conduct of a sexual nature" and that "the harassment complained of was based on sex").

Even assuming the hug was nonconsensual, the limited conduct occurring over a short period of time is not sufficiently severe or pervasive to establish Appellant's claim. *See Annie F. v. Nat'l Credit Union Admin.*, EEOC Appeal No. 0120171111, 2019 WL 1761863, *7 (Apr. 2, 2019) ("even if these incidents all occurred as alleged, we do not find that these incidents, occurring over the course of less than a year, were severe or pervasive enough, as a matter of law, to establish a claim of hostile work environment harassment.").

Thus, the FAD's finding of no sexual harassment should be affirmed.

V. CONCLUSION

Appellant failed to meet his ultimate burden to demonstrate by a preponderance of the evidence that he was subjected to discrimination or harassment. For the reasons set forth in the FAD and this appeal opposition, the Agency respectfully requests that the FAD be affirmed as to all claims and that Appellant's appeal be dismissed.

/ / /

/ / /

/ / /

/ / /

Respectfully submitted,

PAULA R. LEE
Chief Counsel
ANGELA BELGROVE
Deputy Chief Counsel

By: */s/ Kara Slack*
KARA SLACK

CERTIFICATE OF SERVICE

I hereby certify under penalty of perjury that I have caused a copy of the foregoing **AGENCY'S BRIEF IN OPPOSITION TO APPELLANT'S APPEAL** to be served upon the recipients listed below by the methods listed below this 10th day of September 2024.

EEOC
EEOC Office of Federal Operations
Served via FedSEP

Appellant
Kevin Turnage
kddturnage@gmail.com
Served via email and FedSEP

/*s/ Kara Slack*
Kara Slack
U.S. Department of Health and Human Services
Office of the General Counsel, Region IX